

5	Hannegan vs. Hyundai Motor America 2024-01416484	1. Motion to Compel Arbitration 2. Case Management Conference <i>Motion is vacated. CMC continued to 11/13/26. See minute order dated 6/8/26.</i>
6	Manalese vs. Las Flores Internet, LLC 2023-01363921	Motion for Summary Judgment and/or Adjudication Defendant Las Flores Internet, LLC dba Strikeworks Solutions' motion for summary adjudication as to the claims of plaintiff Karlina Manalese is denied in its entirety. Defendant seeks summary adjudication as to the first, third, fifth, sixth, ninth, tenth, eleventh, twelfth, thirteenth, fourteenth and fifteenth causes of action to the Second Amended Complaint (SAC). It should be noted that Strikeworks' Separate Statement of Undisputed Material Facts is not in compliance with CRC Rule 3.1350. California Rules of Court, rule 3.1350(d) requires that the separate statement "separately identify each cause of action, claim, issue of duty, or affirmative defense, and each supporting material fact claimed to be without dispute with respect to the cause of action, claim, issue of duty, or affirmative defense." When seeking summary adjudication, "the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts." (CRC, rule 3.1350.) As Strikeworks lumped all of the facts together, indicating that each fact supports each item of requested adjudication, if there is a triable issue as to any fact, the motion fails in its entirety. Nevertheless the court addresses the motion on the merits. When a defendant seeks summary adjudication, it bears the burden of proof by a preponderance of the evidence to establish that a cause of action has no merit, that plaintiff cannot prove an element or some elements of a cause of action, or that a complete defense is established as a matter of law entitling it to judgment. (Code of Civ. Proc., § 437c, subd. (p)(2); <i>Hunter v. Pacific Mechanical Corp.</i> (1995) 37 Cal.App.4th 1282, 1287.) Strikeworks has failed to meet its initial burden with regard to causes of action ten through fifteen. Plaintiff's causes of action ten through fifteen are based on Strikeworks failure to pay Plaintiff commission owed. Strikeworks contends these causes of action fail as it is undisputed Manalese did not earn the commission she contends was unpaid, therefore there was no breach. Strikeworks contends that although

	Plaintiff had some early communications with MOMS of Orange County, she did not earn commission because she was not the original source of the client-contact and did not close the deal. SUF 44. In opposition, Manalese argues she originated and developed opportunities involving MOMS Orange County and Illumination Foundation during her employment. (PSSUF Nos. 20, 42 45) Whether Plaintiff sufficiently originated those accounts to entitle her to commission compensation presents a classic factual dispute inappropriate for summary adjudication. Defendants seek to benefit from the absence of documentation that they were legally required to provide. California law does not permit an employer to avoid commission liability through ambiguity created by its own failure to comply with Labor Code section 2751. There are triable issues of fact as to the first, third, fifth, sixth and ninth causes of action. Specifically, there are triable issues of fact as to Strikeworks' argument it could not have discriminated against Manalese because it had no knowledge of Manalese's claimed disabilities. See UMFs 38, 39 and Manalese's AMFs # 7, 8, 9, 10, 20, 21. In <i>Soria v. Univision Radio Los Angeles, Inc.</i> (2016) 5 Cal.App.5th 570, the court found a triable issue existed where the employee testified she told her supervisor she had a tumor and needed surgery, even though the supervisor denied these conversations occurred. This disputed factual issue precluded summary adjudication based on the employer's purported lack of knowledge. No authority requires that medical records be provided to the employer or that human resources be notified; all that is required is evidence that decision-makers knew of the disability. (<i>Id.</i>). Plaintiffs may also rely on circumstantial evidence to demonstrate employer knowledge. In <i>Sandell v. Taylor-Listug, Inc.</i>, (2010) 188 Cal.App.4th 297, the court found that even without direct evidence that decision-makers were aware of the employee's speech impairment following a stroke, "one could reasonably infer from this evidence that those who worked with [the employee], including [management], were aware that [the employee's] ability to speak continued to be negatively affected by his stroke throughout his employment." The court emphasized that on summary judgment, evidence must be viewed in the light most favorable to the nonmoving party, and a fact finder could reasonably draw such inferences. (<i>Id.</i>) There are triable issues of act as to whether Manalese competently performed her job duties. See UMFs 18, 20, 23, 44, 45 and AMFs 5, 11. Plaintiff bears no burden to show she was performing her job
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	competently. A plaintiff must demonstrate only “some basic level of competence” at the job. Plaintiff’s showing should be based on objective criteria to the extent possible. (<i>Sandell v. Taylor-Listug, Inc.</i> (2010) 188 Cal.App.4th 297.) The burden of establishing a prima facie case is “not onerous” and exists primarily to weed out patently unmeritorious claims. (<i>Id.</i>) In <i>Cheal v. El Camino Hospital</i>, (2014) 223 Cal.App.4th 736, the court found multiple triable issues precluded summary judgment, including what constituted the relevant standard of competent performance, whether coaching incidents indicated actual performance errors, and whether an alleged menu error fell outside the norm of acceptable performance. The employee presented evidence that given the nature of the work, the hospital expected mistakes, that her mistakes did not exceed acceptable performance standards, and that other employees were not disciplined for making the same types of mistakes. (See also <i>Serri v. Santa Clara University</i> (2014) 226 Cal.App.4th 830.) There are triable issues of fact as to whether Strikeworks terminated Manalese for legitimate business purposes. See UMFs 13, 15, 17, 18, 19, 20, 23. See also Manalese’s Additional Material Facts (“AMF”) 1 through 17. It is undisputed that Manalese was the only employee terminated due to “economic reasons.” An employer’s failure to explain why only the plaintiff was terminated while other employees were retained constitutes substantial evidence of pretext. In <i>Zamora v. Security Industry Specialists, Inc.</i>, (2021) 71 Cal.App.5th 1, the court reversed summary adjudication where the employer claimed economic reasons for termination but “failed to explain why Murillo and Lopez were reassigned while Zamora was terminated.” The court concluded that this incomplete showing, combined with other evidence, <i>raised a triable issue</i> regarding the true reason for discharge. Manalese’s objections to the declaration of Amanda Fisk are overruled. Manalese’s objections to the declaration of Victor Villanueva are overruled. Strikeworks’ objections to the declaration of Kerrie Merrifield is sustained as to 9 and overruled as to the remainder. Strikeworks’ objections to the declaration of Karlina Manalese are overruled.
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